

March 25th, 2025

Chief Justice Roberts and Associate Justices
Supreme Court of the United States
1 First Street, NE
Washington, DC 20543

Dear Chief Justice Roberts and Associate Justices,

Re: Proposed Remedies For Reuniting Local Communities in United States v. Google LLC

Intra-community communication, the foundation of human culture,¹ is decades in decline.² In 2023, the U.S. Surgeon General declared an ‘Epidemic of Loneliness and Isolation’³ and included technology as a contributing factor. For local communities, Google search can be a gateway or a gatekeeper, depending on the extent to which local results appear for local inquiries. By leveraging verified reference data, we measure Google’s search inclusivity (of local organizations) and explore the limitations of Google’s search-only approach to Information Retrieval (IR.) We conclude with recommendations for corrective actions as remedies in the United States v. Google LLC.

Highlights

- 94% of local organizations are undiscoverable on Google by categorical keyword-search.⁴
- Limiting IR to search, without categories or sorting, is a gatekeeping tactic. It limits information-access while increasing the demand for advertising- as if improved search-result-ranking is the only way to be found.
- According to Google, Artificial Intelligence (AI) represents the biggest breakthrough in search in 25 years.⁵ As of March, 2025, open-source AI is competitive⁶ with Google, ushering in new-options for more democratized and less commercialized solutions.

¹ Pagel, M., 2017. What is human language, when did it evolve and why should we care?. BMC Biol 15, 64. Link: <https://bmcbiol.biomedcentral.com/articles/10.1186/s12915-017-0405-3>

² Putnam, R. D., 2000. Bowling Alone: The Collapse and Revival of American Community. Simon & Schuster. Link: <https://muse.jhu.edu/article/16643>

³ Julianne Holt-Lunstad, 2023. Our Epidemic of Loneliness and Isolation: The U.S. Surgeon General’s Advisory on the Healing Effects of Social Connection and Community, Office Of The Surgeon General. Link: <https://www.hhs.gov/sites/default/files/surgeon-general-social-connection-advisory.pdf>

⁴ Pitney (self published) 2025, all searches/results/details here: <https://github.com/fdpitney2000/GoogleRemedies/tree/main>

⁵ Ried, E., 2023. Supercharging Search With Generative AI. Link: <https://blog.google/products/search/generative-ai-search/>

⁶ Wei-Lin Chiang, Lianmin Zheng, Ying Sheng, Anastasios Nikolas Angelopoulos, Tianle Li, Dacheng Li, Hao Zhang, Banghua Zhu, Michael Jordan, Joseph E. Gonzalez, Ion Stoica, 2024. Chatbot Arena: An Open Platform for Evaluating LLMs by Human Preference. arXiv.Link: <https://lmarena.ai/?leaderboard>

Arriving At The Reference Data

Local organizations of all types serve as productive centers for cultural and economic exchange, hence we started with inclusivity as a first-principle: All South Whidbey organizations and individuals doing business in their own name are included. Specifically, the reference data includes all of the following:

- Organizations with an active status with the Washington Secretary of State, located in South Whidbey, with an active website.
- Organizations with a non-local headquarters which have at least one full time employee in South Whidbey who primarily serve the South Whidbey area.
- Individuals doing business in their own name, who live in South Whidbey, and have an active website.
- All have been contacted by South Whidbey Online, A Social Purpose Corporation, to be made aware of this initiative to 'make our online community, our own.' All have been given the opportunity to utilize our directory at <https://southwhidbey.online> and/or to opt-out. Feedback from the community is available as appendix Figure 1.
- All are verified to be included in Google's network (and can be found when the exact business name and/or exact business name in combination with the city and state of their headquarters is searched.)
- Many sources were used to arrive at the reference data. A summary of the top 20 sources is available in appendix Figure 1.

621 local organizations were identified and organized according to three levels of detail for categorical search-term purposes:

1. Main categories (10)
2. Subcategories (31)
3. Detailed subcategories (387)

For instance, a pet-care service and graphic-design consultancy may have keyword-search phrases per the above as:

	<i>(Tricia's Pet Care)</i>	<i>(CK Graphic Design)</i>
1. (Main Categories)	Animal and Pet Care Services	Services and Retail
2. (Subcategories)	Pet Sitting	Web-Design
3. (Subcategory Details)	Overnight Pet Resort	Full Service Creative
	Agency	

By arriving at a reference-data set, we can measure Google's inclusion and/or exclusion of local organizations.

From Gateway to Gatekeeper

Gatekeeping, in this context, refers to limiting information access in order to charge a premium for increased visibility. We identify two ways Google limits access to local organizations: first, by underrepresenting local organizations in search-results, and second, by limiting information retrieval tools to advertisement-based ranking schemes.

For the first causal mechanism, the underrepresentation of local organizations in search-results, we analyzed 930 search results from 31 carefully selected key-word searches. Each search-phrase was derived from the verified reference data to ensure at least 10 local results, on average, were possible for each query. "Near me" was appended to each search with location services activated at the approximate center of the South Whidbey area. We then classified all 930 results, by URL, as either local or non-local entities. 58 of the 930 results, or 6%, were local, and the rest were non-local. We believe this lack of local information is having a highly divisive impact on our local community and likely on most local communities Nationwide.

For the second causal mechanism, we zoom-out to examine Google's approach to Information Retrieval (IR). Studies in IR demonstrate how search, when combined with categories and sorting of the search-results, represent the most effective means of information retrieval.⁷ Indeed, we only need to look to the public library's catalog search, ebay.com or amazon.com to see all three of these IR tools being effectively utilized. Yet Google relies on search exclusively. We submit search alone limits information access and effectively heightens the importance of result-ranking based advertising. Please consider the following example to illustrate:

South Whidbey is home to 110 General Contractors. Imagine all 110 increased their Google advertising budget to \$5,000 per month. Yet Google only presents data in a "top 10" type ranking format, making it impossible for 110 General Contractors to be presented on a level playing field, such as could be readily accomplished with A-Z sorting or proximity sorting.

Proposed Remedies

When Google began, it had to compete with phone books which, at the time, provided near 100% local, accurate, and inclusive content. Not surprisingly, Google was competitive at the time and even offered categories and location-specific data as can be seen via their search page from 2011 (Figure 4.) Now is the time to reinstate these fundamental community resources by putting local communities back into focus:

For any Nationwide web-search portal (NAICS 519130) we propose:

1. Location-based searches must prioritize local-entities on the first-page of the search results. This can be accomplished:

⁷ Ben-Yitzhak, O., Golani, M., Ravid, G., & Shmueli, G., 2008. An exploratory approach for analyzing faceted search.

- a. Internally
 - i. Correct the algorithm and/or AI to prioritize local results for local searches, and,
 - ii. Allow organizations to update their data such as is available today via Google Business Profiles for Google Maps.
 - b. Externally
 - i. The algorithm/AI changes can be implemented by a third party.
 - ii. The opt-in, opt-out (ie., maintenance) can be delegated to local (city or county) Chambers of Commerce, and/or to local 501(c)3 organizations which include community-building in their mission.
2. Category-based searches which include locally-available keywords (ie., “plumber,” “veterinarian,” “yoga studio,” as applicable,) shall include a checkbox-option to view locally available organizations as described above.
3. When locality is triggered by either of the two above, sorting by proximity or A-Z must also be available.

Conclusion

Google’s version of the Internet is less like a public network and more like a pay-to-play gatekeeping service in which most of the data is hidden in order to increase advertising revenue. Google is the only winner in this scheme.

Appendix:

Figure 1. Sources for the reference data. The largest source is the Washington Secretary of State, which listed 2,009 active organizations, 580 of which were found to have active websites on Google. The total organizations found across all sources amounted to 621.

Source (A-Z)	No. of Entities supplemental to the WA SOS
Chamber of Commerce - Clinton	zero net-new
Chamber of Commerce - Freeland	zero net-new
Chamber of Commerce - Greenbank	zero net-new
Chamber of Commerce - Langley	3 net-new
Drewslist (notable mention)	Copyrighted newsletter, content excluded
Facebook search by business categories	zero net-new
Google search by business name	2,009 searches using WA SOS data, 580 verified
Google search by categories	Zero net-new
Nextdoor	zero net-new
Physical bulletin boards at Grocery stores	5 net-new
Port Of South Whidbey	zero net-new
Tiktok, Instagram, X, Reddit	zero net-new
Washington Secretary of State (WA SOS)	580 net new
Whidbey and Camano Islands Tourism	3 net-new
Whidbey Community Foundation	5 net-new
Whidbey Island Arts Council	7 net-new
Whidbey Island Grown Cooperative	5 net-new
Whidbey Telecom Phone Book	13 net-new

Figure 2. Feedback from community members.

What a great idea! Thank you so much!



Thank you so much!!



Thank you for including us!



Thanks so much!



Wonderful, thanks, nice directory!



What a great idea! Thank you!



Thank you!



Thanks for including us Daniel!



Thank you for this, this looks great!



Figure 3: Thirty one Searches. The first 30 results of each (930 total) were analyzed for inclusivity. 94% of results were non-local. Complete details are available via footnote no. 4.

"Veterinarian near me",
"dog training near me",
"pet care near me",
"fine art studio near me",
"church near me",
"general contractor near me",
"plumber near me",
"electrician near me",
"remodel near me",
"homeschooling near me",
"gym near me",
"martial arts near me",
"farm near me",
"naturopathic care near me",
"counseling near me",
"coaching near me",
"dentist near me",
"hair salon near me",
"massage near me",
"pilates near me",
"marketing services near me",
"web design near me",
"jewelry near me",
"tax services near me",
"B2B consulting near me",
"landscaping services near me",
"event spaces near me",
"lodging near me",
"house painting near me",
"septic services near me",
"home construction near me"

Figure 4, Google in early 2011.

